

Jiyauddin v. State of U.P. — s.126 recovery withdrawn; fresh Clause 6.8 order

High Court of Judicature at Allahabad · Division Bench · 2 July 2024 · 2024:AHC:107137-DB · Writ-C No. 20800 of 2024 · **Petition disposed; s.126 demand withdrawn; liberty for fresh Clause 6.8 order.**

HEADNOTE

On the Electricity Department's statement that a Section 126 recovery demand had been withdrawn and that a fresh order would be passed strictly in accordance with Clause 6.8 of the U.P. Electricity Supply Code, 2005, the Division Bench disposed of the writ with liberty to pass a fresh order under the Code, without examining the assessment on merits.

FACTUAL SUMMARY

Jiyauddin petitioned the Allahabad High Court to quash a recovery notice dated 5 July 2023 issued against him for electricity dues in pursuance of proceedings under Section 126 of the Electricity Act, 2003. On the subsequent listing, counsel for the respondent Electricity Department stated on instructions that the impugned demand had been withdrawn and that a fresh order would be passed strictly in accordance with Clause 6.8 of the U.P. Electricity Supply Code, 2005.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.8

fresh s.126 order after withdrawal of recovery

HOLDING

Recording the licensee's withdrawal of the Section 126 recovery demand and its undertaking to pass a fresh order strictly in accordance with Clause 6.8 of the U.P. Electricity Supply Code, 2005, the Court disposed of the writ with liberty to the Electricity Department to pass a fresh order strictly in accordance with the procedure prescribed under the Code, without adjudicating the assessment. ¶ 2-3

PRINCIPLE TAGS

opportunity-before-final-assessment

On the Electricity Department's statement that a Section 126 recovery demand had been withdrawn and that a fresh order would be passed strictly in accordance with Clause 6.8 of the U.P.. ¶ 2-3

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — VALIDITY OF THE 5 JULY 2023 RECOVERY NOTICE AND THE UNDERLYING SECTION 126 ASSESSMENT

Demand withdrawn; Department given liberty to pass a fresh order under the Supply Code. ¶ 2-3